

GAHC010125342025



2025:GAU-AS:10498

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : I.A.(CrI.)/624/2025

BAHAR UDDIN
S/O JAINAL AHMED, R/O VILL AND P.O. KAPASHBARI, DIST- HOJAI,
ASSAM- PIN 782445.

VERSUS

THE STATE OF ASSAM
REP. BY THE PP, ASSAM

Advocate for the Petitioner : MR. A K TALUKDAR, MRS. H THAKURIA

Advocate for the Respondent : PP, ASSAM,

In AB Case No. /889/2025 (D/O)

BAHAR UDDIN
S/O JAINAL AHMED
R/O VILL AND P.O. KAPASHBARI
DIST- HOJAI
ASSAM- PIN 782445.

VERSUS

THE STATE OF ASSAM
REP. BY THE PP

ASSAM

Advocate for : MR. A K TALUKDAR
Advocate for : PP
ASSAM appearing for THE STATE OF ASSAM

**BEFORE
HONOURABLE MR. JUSTICE MRIDUL KUMAR KALITA**

ORDER

08.08.2025

- 1.** Heard Mr. A.K. Talukdar, the learned counsel for the applicant.
- 2.** This interlocutory application has been filed by the applicant, namely, Bahar Uddin, in connection with AB No. 889/2025, whereby he was asked to appear before the Investigating Officer of Umrangso P.S. Case No. 02/2025.
- 3.** The learned counsel for the applicant has submitted that when he appeared before the Umrangso P.S. Case No. 02/2025, he has been informed by the Officer-in-Charge that the Investigating Officer has been transferred to CID and therefore, there was some delay in appearing before the Investigating Officer as directed by this Court, later on, he came to know that the earlier Investigating Officer, namely, Upen Kalita was transferred as Deputy Superintendent of Police to CID. However, he is still the Investigating Officer of Umrangso P.S. Case No. 02/2025.
- 4.** The learned counsel for the applicant has submitted that accordingly he appeared before the Investigating Officer on three

occasions, i.e., on 24.07.2025 and 28.07.2025 and 30.07.2025 .

5. The learned Additional Public Prosecutor has produced the Case Diary of Umrangso P.S. Case No. 02/2025 and has submitted that the applicant has appeared before the Investigating Officer of the Umrangso P.S. Case No. 02/2025 on 28.07.2025 and his statement under Section 180 of BNSS, 2023 has been recorded by the Investigating Officer.

6. As the applicant has appeared before the Investigating Officer, though after the time which was granted to him by the order dated 11.04.2025, however, in the circumstances in which the delay has occurred, same is accepted by this Court and this interlocutory application is hereby disposed of.

JUDGE

Comparing Assistant